
Appeal Decision

Site visit made on 8 July 2026

by **B Phillips BSc MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 19TH August 2026

Appeal Ref: 6007188

Brook Close, Rodmarton, Cirencester GL7 6PE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Emily Olsen against the decision of Cotswold District Council.
 - The application Ref is 25/02458/FUL.
 - The development proposed is the demolition of existing dwelling and outbuildings and replacement with a new dwelling, garage and outbuilding, new landscaping and associated ancillary works (self-build development).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A legal agreement has been submitted with the appeal that secures the proposal as self build. This is discussed further below.

Main Issues

3. The main issues in this case are:
 - The effect of the proposal on the significance of a non-designated heritage asset (NDHA);
 - Whether the proposal would preserve the setting of the Grade II listed Little Tarlton;
 - The effect of the proposal on the setting of the Rodmarton Conservation Area (CA); and
 - The effect of the design of the replacement dwelling on the character and appearance of the surroundings.

Reasons

NDHA

4. The appeal property, Brook Close is a large, detached dwelling sited on the edge of the settlement of Rodmarton, finished in Cotswold stone and limestone and set within a sizeable plot.
5. The property is an identified NDHA. It has been significantly altered and extended from its original mid 20th century modest cottage form, designed by AH Powell, an

architect, pottery designer and influential person in the Cotswold Arts and Crafts Movement.

6. This has diminished its original character and appearance, and little remains of the original form and features. Nevertheless, I observed that, as set out in the submitted Heritage Impact Assessment¹, there remains evident some distinct vernacular Arts and Crafts character or vernacular architectural character through retained features such as the original surviving door, supposedly designed by the architect himself. Other surviving features include the rounded stone quoins and the drip moulds above the front and side windows, and traces of the original architectural style, and the eaves line of the Powell house is still readable.
7. Relative to the appeal therefore the building's significance at a local level largely stems from its historic, aesthetic and architectural interests as a house by AH Powell.
8. The property has a large garden area; however any formal design is indistinguishable. I observed that there is no clear remaining access path from the road to the front door, and various outbuildings have compromised any contribution the garden area had to the significance of the property. Moreover, as set out below, the listed buildings at Little Torton are separate in form and siting, and there is no clear specific group value between the appeal property and these listed buildings.
9. Nevertheless, it is noteworthy that the appellant does not disagree with the NDHA designation of the property, given the association with AH Powell and what remains of the original building². However, given the alterations to the property, the significance of Brook Close as a NDHA is low.
10. The National Planning Policy Framework (the Framework) requires that the effect of an application on the significance of a NDHA should be taken into account in determining the application. In weighing applications that directly or indirectly affect NDHAs, a balanced judgement will be required having regard to the scale of any harm or loss and the significance of the heritage asset.
11. Whilst I have found the level of remaining significance to be low, the proposal would result in the total loss of the building and therefore its significance within the local context. This would clearly not sustain and enhance the significance of this heritage asset and would instead result in the greatest scale of loss and harm to significance, eradicating the positive contribution that the building's conservation could make to the local community.
12. The replacement dwelling would have a high level of sustainability, however even if these improvements were not possible to the existing dwelling, given the scale of the development, the weight given to this benefit is small. Similarly, any benefit to enhancements to landscape and biodiversity, even if dependant on the construction of a replacement dwelling, would, given the scale of the scheme, also be small.
13. The design of the replacement dwelling is considered below, however in being in keeping with the surroundings it is not demonstrated as being outstanding. There is no benefit in this case therefore.

¹ By Monatgu Evans, July 2025

² Page 11 Planning Statement by Monatgu Evans 5/8/25

14. The development is described as self-build. The Framework supports small sites coming forward for self-build and custom-build housing. A legal agreement has been submitted to secure the development as such. Nonetheless, there is no information before me to suggest that the Council is failing in its statutory duty to meet the demand for self-build and custom housebuilding. As such, I can only give this matter a small weight in favour of the proposal.
15. Consequently, whilst there are considerations that weigh in favour of the proposal, in my judgement, they are not sufficient to outweigh the harm I have found.
16. Accordingly, I conclude that the harm to significance arising from the total loss of the NDHA would conflict with Policies EN1, EN2 and EN12 of the Cotswold District Local Plan 2011-2031 (2018) (LP) in so far as they collectively require the protection and conservation of the historic environment, and that a balanced judgement is undertaken as to the loss of significance. It would also conflict with the provisions within the Framework which also seek to conserve and enhance the historic environment.

Little Tarlton

17. Little Tarlton is a group of seven (Nos 5 to 11) Arts and Crafts cottages by Ernest Barnsley, built between 1909 and 1926 and forming a small linear road fronting hamlet to the north-east of Rodmarton. All are in a similar modest style and all are Grade II listed³.
18. The significance of these properties primarily lie as examples of Barnsley's Arts and Crafts vernacular style and for their group value as a collection of cottages of coursed and dressed Cotswolds stone and slate roofs. Important contributors in these regards which are pertinent to the appeal are the legibility of their historic plan-forms, consistent and retained extant historic fabric and key historic features and detailing.
19. The properties appear as a set piece, set apart from Rodmarton and any neighbouring dwelling. The setting of the properties is made up mostly of open countryside, given their location outside the main built area of the settlement.
20. This surrounding rural form provides the primary surroundings within which the buildings are experienced, and this close connection allude to original relationship between the modest cottages and agricultural work and helps ensure that this is appreciated. Therefore, the immediate setting of the listed buildings also, in part, supports and contributes in a positive way to their special interest and significance.
21. No 5 is the nearest property to the appeal site, and its large garden area directly borders the substantial appeal property garden.
22. As built domestic form the appeal property does not contribute to the rural or agricultural surroundings of Little Tarlton. Whilst its vernacular materiality remains, even if there was originally a possible historic connection in terms of architectural and aesthetic harmony between the appeal property and Little Tarlton, it is no longer evident given the significant alterations to the appeal property.
23. The appeal property does not therefore contribute positively to the setting of Little Tarlton. Its replacement with a new dwelling would not therefore be intrinsically

³ Listing reference 1153643 (No 5), 1089235 (Nos 6 & 7), 1153648 (No 8), 1341399 (Nos 9 & 10) and 1153654 (No 11).

harmful. Whilst larger in scale, the additional prominence from distance views of the replacement dwelling would be modest given the retained substantial separation gap, as identified in the submitted photo montages⁴. It would not intrude into open views nor dilute the rural character of the surroundings. The setting of Little Tarlton would be preserved.

24. I conclude on this matter that the proposal would not result in harm to the significance of Little Tarlton. There is no conflict with LP Policies EN2, EN10 and EN11 which collectively, amongst other matters, seek to protect the historic environment.

Setting of CA

25. I observed that the significance of the Rodmarton CA as a whole largely derives from its historic development through agriculture and the wool trade, linked with the surrounding rural landscape, and the rich and cohesive number of vernacular historic buildings that denote its evolution. This includes a number of Arts and Crafts dwellings, such as Rodmarton Manor, a Grade I listed property identified as one of the most important country houses demonstrating the principles of the movement.
26. From what I observed there is a variety of property/plot sizes throughout the settlement and there is no clear pattern in terms of settlement grain that contributes to the character and appearance, nor significance of the CA.
27. There is also no clear pattern of low-density arrangement or modest scale (including height) of buildings, (such as the substantial appeal building, school and village hall) outside the CA, and the sporadic built form and transitional approach into and out of the settlement from the wider countryside does not contribute in any meaningful way to the significance of the CA. Rather, the setting of the CA is mainly made up of open agricultural fields which results in a rural character to the settlement. This is the main way the CA is experienced in views of it and from travelling into and out of the settlement. In this way, the setting contributes positively to the significance of the CA.
28. The appeal site is notably outside the CA boundary. As a large, detached dwelling with various outbuildings, even with its limited retained Arts and Crafts character, it does not particularly contribute to the open rural character of the setting of the CA. There is no clear or meaningful relationship between the brief public views of the appeal dwelling and the significance of the CA either in a static settlement pattern form or through a moving sequence. As such, the appeal site including its garden, is not characteristic of the CA setting and does not contribute positively to the significance of the CA.
29. The loss of the existing property and its replacement would not therefore lead to harm to the significance of the CA. In this respect, there would be no conflict with the protection of the historic environment, including and Conservation Areas and their settings, goals of LP Policies EN2, EN10 and EN11.

⁴ Appendix 7.0 of the Heritage Impact Assessment

Character and appearance

30. The settlement includes a variety of detached and terraced dwellings of varying scale and forms. As set out above, the immediate nearby built form to the appeal site includes a village hall, primary school and large detached and semi-detached dwellings at Barnsley Place, in addition to garages and outbuildings, and so there is not a character of small cottages to the immediate surrounds. The scale and prominence of the appeal property have significantly altered to its current substantial size. It has the character of a prominent high status dwelling at present and the scale of the building and plot is uncharacteristically large.
31. The replacement dwelling would be substantial in scale, however, given the substantial plot, like the existing dwelling, would not appear cramped in any way. It would not appear out of keeping with any surrounding evident pattern of development. Its scale, including height, would not appear incongruous.
32. Its proposed materials, including Cotswold Stone, natural stone and slate, and reuse of some of the existing stone, timber, ironmongery, internal doors, would be in keeping with the prevailing vernacular palate, and its scale would not confuse any evident pattern of development. Its design would meet the requirements of the Cotswold Design Code with its use of dormers, bay windows and gables and its square form would not be out of keeping with the mixed form of nearby dwellings.
33. The existing property has garages/outbuildings and the proposed outbuilding would not therefore be incongruous. There is no evident pattern of landscaping within the surroundings and so the proposed domestic landscaping would also not be inappropriate.
34. Notwithstanding the effect of the loss of the NDHA, I conclude on this matter that the design of the proposed replacement dwelling would therefore not harm the character and appearance of the surroundings. There is therefore no conflict with general protection of character and distinctive appearance goals of LP Policies EN2, EN10 and EN11.

Other Matters

35. Whilst the appeal site lies within the Zone of Influence for the Cotswold Beechwoods Special Area of Conservation (SAC), the development would not result in any additional units of accommodation. Notwithstanding this, as I am dismissing the appeal for other reasons, I am not pursuing this matter further because it could not lead me to a different decision.
36. The proposed demolition of the existing property would result in the loss of day roosts of Common Pipistrelle and Serotine bats. The submitted Ecological Impact Assessment⁵ outlines mitigation measures such as the timing of works, maintenance of roosts, supervision of high risk works by an ecologist, and compensation (provision of further roosting features within the building and maintenance of dark flight lines).
37. Were I minded to allow the proposal, a condition securing these measures, as suggested by the Council's ecologist, would successfully maintain the population of the species concerned at a favourable conservation status. There is no conflict

⁵ By Wildwood Ecology, 14/7/2025

therefore with the protection of protected species requirements of the LP Policy EN8, in addition to the Habitats Regulations and Framework.

38. The appeal site is located within the Cotswolds National Landscape, specifically within area 107, as set out in the Natural England National Character Area Map.
39. The key characteristics and special qualities of this area are described as including the domination of arable farming, a dramatic scarp rising above adjacent lowlands with steep combs and a rolling, open, high wold plateaux moulded by physical and human influences. Pertinent to the appeal, it also refers to honey-coloured Cotswold stone in walls, houses and churches, attractive stone villages with a unity of design and materials.
40. The replacement dwelling, located in the same position as the existing, would not intrude into the landscape and, as set out above, would be finished in appropriate materials. The natural beauty, wildlife and cultural heritage of the Cotswold National Landscape would be conserved and unharmed.

Conclusion

41. Whilst I have found that the replacement dwelling would not lead to harm to the character and appearance of the surroundings and setting of the CA, and that the proposal would not harm the significance of Little Tarlton, taking a balanced judgement, the benefits set out above do not outweigh the identified harm to the NDHA.
42. The proposal conflicts with the development plan when taken as a whole and the material considerations do not indicate that the appeal should be decided other than in accordance with it.
43. For the reasons given above the appeal is dismissed.

B Phillips